

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

**COMPLAINANT’S MOTION TO FILE UNDER SEAL COMPLAINANT’S
OPENING BRIEF, PROPOSED FINDINGS OF FACT, AND APPENDIX TO THE
OPENING BRIEF**

Pursuant to Rule 5 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.5, and the Protective Order entered by the Presiding Officer in this case on May 8, 2025, see Dkt. 32 (the “Protective Order”), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”), by and through its undersigned attorneys, respectfully moves for an order permitting Complainant to file under seal with the Presiding Officer unredacted copies of its Opening Brief (“Brief”), Proposed Findings of Fact (“FOF”), and Appendix to the Opening Brief (“Appendix”, together with the Brief and FOF, the “Subject Filings”), filed contemporaneously herewith, and to file on the public docket of this case redacted copies of the Subject Filings. Complainant’s counsel conferred with Respondent’s counsel prior to the filing of this motion, and Respondent does not oppose this motion.

LEGAL FRAMEWORK

The Subject Filings are being filed contemporaneously with the instant motion pursuant to the Presiding Officer’s February 25, 2026, Fifth Revised Scheduling Order in this action.

Under Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating “the

information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. Section 502.5(b). The Protective Order agreed to by the Parties and entered by the Presiding Officer in this case establishes the standard for confidentiality protection of documents produced in discovery in this case. *See* Protective Order Sections 2-3.

REQUEST FOR CONFIDENTIAL TREATMENT AND LEAVE TO FILE UNDER SEAL

Complainant’s Subject Filings filed herewith contain and refer to material designated by Complainant or Respondent as Confidential or Attorneys Eyes Only (“AEO”) pursuant to the Protective Order (the “Confidential Materials”).¹ The Confidential Materials for which Complainant seeks confidential treatment consist exclusively of documents produced in discovery by Complainant and Respondent, which were labeled Confidential or Attorneys Eyes Only pursuant to the Protective Order, and consist of non-public email communications and documents from Complainant and Respondent’s respective custodians.

Good cause exists for the confidential treatment of the Confidential Materials. The Confidential Materials are subject to the Protective Order in this action and have been designated by Complainant and Respondent as either Confidential or AEO pursuant to that Protective Order. Complainant seeks confidential treatment only for materials that the parties themselves designated as Confidential or AEO in discovery and is not seeking any treatment beyond what the Protective Order already requires.

Complainant’s proposed redactions of the Confidential Materials are highlighted in yellow throughout the Subject Filings.

¹ The Table of Contents to Complainant’s Appendix to the Opening Brief identifies the Subject Materials via yellow highlighting. *See* Appendix to the Opening Brief at i n.1.

CONCLUSION

Consistent with the requirements of the Protective Order in this case and for good cause shown, Complainant seeks by the instant motion leave to file its Subject Filings under seal.

Dated: May 21, 2026

Respectfully submitted,

HUTH REYNOLDS LLP

/s/ J. Zachery Morris

Karl C. Huth

(212) 731-9333

huth@huthreynolds.com

Matthew J. Reynolds

(646) 872-9353

reynolds@huthreynolds.com

J. Zachery Morris

(332) 203-4571

zmorris@huthreynolds.com

Gregory A. Crapanzano II

(917) 575-3440

gcrapanzano@huthreynolds.com

Mohini P.B. Rarrick

(818) 235-9753

mpriya@huthreynolds.com

Heewan Noh

(202) 420-9628

hnoh@huthreynolds.com

41 Cannon Court

Huntington, NY 11743

*Counsel for Complainant 20230930-DK-
Butterfly-1, Inc., formerly known as Bed Bath &
Beyond Inc.*

Certificate of Service

I hereby certify that I have this day caused to be served the foregoing document upon Respondent BAL Container Line Co. by emailing a copy to their counsel of record listed below:

Bryce M. Cullinane, Esq. CASB No. 307079
bcullinane@tocounsel.com
David P. Collins, Esq. CASB No. 356864
Dcollins@bmc.law
8885 Research Drive, Suite 150
Irvine, CA 92618

Counsel for Respondent BAL Container Line Co., Limited

Dated: May 21, 2026

/s/ J. Zachery Morris

J. Zachery Morris

*For Complainant 20230930-DK-Butterfly-1,
Inc.*